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Jewish groups hail California law making it the first state to list 'Jewish' as an ethnicity

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California is now the first state in the nation to deem "Jewish" an ethnic and racial identity, rather than just a religious affiliation.

Democratic Gov. Gavin Newsom on Wednesday signed SB 1387, a bill that expands California's legal definition of ethnicity "to include Jewish identity" in demographic data collection. As of Jan. 1, 2029, forms distributed by public entities like schools and prisons will need to include a "Jewish" category when asking for voluntary disclosures of ethnicity or race.

David Bocarsly, CEO of Jewish California, a group that lobbies on behalf of a number of Jewish organizations in the state, described the signing in a statement as "a historic step for the Jewish community."

"Under the shadow of Nazi race theory, American Jewish leaders asked the government to count us only as a religion," he said, noting that this approach "didn't work" and led to exclusion from data that shapes policy.

"Now hate crime, health, poverty, and education data will reflect who Jewish Californians actually are so we can ensure the best support for our community," Bocarsly added. "Most importantly, it allows us to be seen as the diverse, complex people we are."

The legislation was a priority among many Jewish groups across the Gold Rush state, who believe that Jewish peoplehood should be connected to more than just religion — and that the law should reflect this relationship.

Newsom, however, expressed some reservations in signing the bill into law.

"I strongly support this bill's goal: accurate data leads to better understanding to inform policy," Newsom, who is considering a presidential run in 2028, wrote in a signing statement. But he said he was concerned that the bill's strictures would make it hard for state agencies to comply with the new law and with federal laws, and recommended revisiting the bill.

In addition to signing SB 1387 on Wednesday — the final day on which he could approve or veto bills in this year's legislative session — Newsom also authorized AB 395, which will prohibit public meetings and graduations from being scheduled on major cultural and religious holidays.

"Californians of all faiths and backgrounds should be able to fully participate in public life," the bill's author, Democratic Assemblymember Jesse Gabriel, said in a statement.

"For too long members of our religious communities have been forced to choose between observing their faith and participating in important public events and academic milestones," added Gabriel, who chairs the California Legislative Jewish Caucus.

Also on Wednesday, Newsom approved AB 1763, which will include religious holiday observance as a type of excused absence in schools without requiring a written request from a parent or guardian.

Newsom signed other bills relevant to the Jewish community in the past few days, including AB 2664, which will establish 100-foot protective zones around entrances to houses of worship.

Another new law is AB 1836, which will close a gap in California's nonprofit security grant structure by extending

funds to off-site religious events like Hanukkah menorah lightings. The governor also approved AB 1853, enacting a ban on including misleading or threatening information, like hate speech, in California voter guides.

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